

P O R T E R | S C O T T

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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE, CARBONE,

SMITH & KOYAMA, AND MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**DECLARATION OF
TYLER J. O'CONNELL
RE: [PROPOSED] ORDER
GRANTING DEFENDANTS' SPECIAL
MOTION TO STRIKE PLAINTIFF'S
FIRST AMENDED COMPLAINT
PURSUANT TO C.C.P. § 425.16 (ANTI-
SLAPP MOTION)**

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

1 I, Tyler J. O’Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California,
3 and I am an associate at the law firm of Porter Scott, counsel of record for Defendants CSAA
4 INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND MICHAEL R.
5 CHAMBERS (“Defendants”). Except for those matters stated on information and belief, the facts
6 set forth herein are true of my own personal knowledge and if called as a witness, I could and would
7 properly testify hereto.

8 2. On May 12, 2026, this Court granted Defendants’ Anti-SLAPP motion, after issuing
9 a Tentative Ruling and holding a hearing thereto.

10 3. After this motion was granted, Plaintiff continued to bombard my office, and the
11 Court’s docket, with a continuing cascade of supplemental filings, service documents, and harassing
12 email correspondences.

13 4. I was then out of office from June 1, 2026 – June 14, 2026.

14 5. Meanwhile, my office was handling the filing and hearing on another Anti-SLAPP
15 motion, in the related case filed by Mr. Rosario, entitled *Rosario v. CSAA*, Case No. CGC25631802.

16 6. Inadvertently, and in light of the concurrently pending Anti-SLAPP motion in Case
17 No. CGC25631802, I simply failed to submit a draft Proposed Order to Plaintiff for his review and
18 stipulation.

19 7. On July 1, 2026, the Anti-SLAPP motion in Case No. CGC25631802, was granted.
20 This Court served a Notice of Entry of Order on *that* Anti-SLAPP motion—negating the need to
21 prepare a draft Proposed Order in *that* case.

22 8. On July 10, 2026, upon realizing the omission in this case of a proposed order, I
23 submitted a proposed order copying verbatim the contents of this Court’s May 12, 2026 Tentative
24 Ruling granting Defendants’ Anti-SLAPP motion, in this case.

25 9. Inadvertently, Plaintiff was not served with a copy of this Proposed Order.

26 10. On July 14, 2026, upon realizing the unintentional omission of service of the draft
27 Proposed Order, I immediately sent an email correspondence to Plaintiff, serving a copy of the draft
28 Proposed Order in this case.

11. On July 15, 2026, Plaintiff sent a very lengthy email response to my service of the draft Proposed Order. Plaintiff's email attached twenty (20) service documents, including a "bench brief," "exhibits," "demonstratives," and other documents. It is unknown if any of those documents were intended to be filed by Plaintiff. Regardless, Plaintiff made clear in his email that he refuses to stipulate to Defendants' draft Proposed Order. Plaintiff's stated reasons for refusing to stipulate are largely arguments in an effort to relitigate the Anti-SLAPP motion and dispute this Court's May 12, 2026 Order.

12. I concede this draft Proposed Order should have been served on Plaintiff back in May 2026. That omission was unintentional and simply overlooked given the concurrently pending Anti-SLAPP motion in Case No. CGC25631802. Moreover, it is clear from Plaintiff's July 15, 2026 response, that his true disagreement is with this Court's ruling on the Anti-SLAPP, not any technical or typographical issues with Defendants' draft Proposed Order.

13. Concurrently with this Declaration, and in compliance with Cal. Rules of Court, Rule 3.1312(c), Defendants' file (and email) a true and correct copy of the Draft Proposed Order served on Plaintiff on July 14, 2026.

14. Attached hereto as **Exhibit A** is a true and correct copy of my July 14, 2026 service email of the draft Proposed Order; and ii) Plaintiff's July 15, 2026 response, refusing to stipulate to this draft Proposed Order.

I declare under the penalty of perjury under the laws of the State of California that the foregoing is true and correct, and that this declaration was executed on July 20, 2026, at Sacramento, California.

Tyler J. O'Connell
Tyler J. O'Connell

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EXHIBIT A

Serena Blithe

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Wednesday, July 15, 2026 4:31 PM
To: Tyler O'Connell; Chad S. Tapp; Stephanie Hengl; Calendar 301; Contest Dept 301 TR
Cc: Serena Blithe; Dylan Rosario
Subject: Re: Rosario v. Abdelhalim - CGC-25-631801 - Proposed Order Granting Anti-SLAPP

External email



00-TAB-COVER-INDEX-JUL15.pdf



01-NOTICE-INTENT-CONTEST.pdf



02-NOTICE-CRC-31312-DEFAULT.pdf



02b-RJN-MAY12-MAY15-MINUTES.pdf



02c-SUPPLEMENTAL-RJN-DEFENSE-PINS.pdf



03-NOTICE-LODGING-COMPETING-ORDER.pdf



04-COMPETING-PROPOSED-ORDER-MAY12.pdf



05-PROPOSED-ORDER-COMPEL-OSC.pdf



06-DECLARATION-ROA-ORDER-DEFAULT.pdf



07-REPORTER-REQUEST-JUL15.pdf



08-NOTICE-CROSS-CASE-POSITION-LOCK.pdf



08b-SUPPLEMENTAL-NOTICE-POINTS.pdf



08c-PROPOSED-ORDER-CCP-1008.pdf



08d-BENCH-BRIEF-JUL15.pdf



09-POS-050.pdf



10-EXHIBIT-INDEX.pdf



11-DECL-COMPLIANCE.pdf



12-EXHIBITS-COMBINED.pdf



16-CLERK-REGISTER-CROSSWALK.pdf



EX-I-JUL15-DEMONSTRATIVES.pdf

Counsels,

I write in response to your request that I stipulate to, or approve, the July 10, 2026 draft “[Proposed] Order Granting Defendant CSAA Insurance Exchange, Michael Chambers, and Carbone, Smith & Koyama’s Motion to Strike Amended Complaint,” which converts the Court’s May 12, 2026 tentative / minute ruling (DocID 10210043) into proposed written form under CRC 3.1312.

I. The Court’s directive, and who was supposed to carry it out

The May 12 minutes directed counsel for the prevailing party to prepare a proposed order repeating verbatim the substantive portion of the ruling, in compliance with CRC 3.1312. That duty was yours. It was not optional, and it was not mine to perform for you.

Your draft did not reach me until July 10, 2026, fifty-nine days after the ruling, and long after the five-day lodging norm contemplated by CRC 3.1312(a). By then, the register still showed no lodged

proposed order and no notice of entry on the May 12 anti-SLAPP grant. That sequence speaks for itself. I will not paper over it by treating a belated paste of the minutes as if the prevailing-party obligation had been timely performed.

I therefore decline any bare stipulation that would erase that procedural history, or that would treat your July 10 draft as an uncontested, complete, or unqualified disposition of the May 12 ruling as it bears on reconsideration, qualifications, and position lock.

II. Concurrent FILE-TODAY cohort (CGC-25-631801)

Separately, and as already served / lodged for Department 301, the following order-lock and reconsideration cohort is before the Court. Each paper has a defined function. Your clients' and your firm's duty is to respond on the merits where a response is required, and not by silence that later pretends the positions were never framed.

Filing	What it does	Your duty
Notice of Intent to Appear and Contest	Places the Court and parties on notice that the tentative / May 12 rationale is contested and will be argued.	Address the contest; we do not treat non-appearance or silence as assent.
Notice of Non-Compliance (CRC 3.1312)	Records that prevailing counsel failed to lodge the May 12 (and May 15) proposed orders / NOE as directed.	Explain the delay if you contest the notice; do not rewrite the timeline.
RJN (May 12 / May 15 minutes)	Judicially notices the minute directives and substantive holdings.	Object only on proper Evidence Code grounds, if any; do not ignore the pins.
Supplemental RJN (defense Tx pins)	Pins the anti-SLAPP / demurrer Transaction IDs already on the register.	Confront those pins; do not omit the sentences you filed to obtain the strike.
Notice of Lodging Competing Proposed Order + Competing Proposed Order	Lodges a competing CRC 3.1312(b) form tracking the May 12 substantive minutes.	If you oppose endorsement of that form, state why with specificity under CRC 3.1312.

Filing	What it does	Your duty
Proposed Order Compel / Endorse / OSC	Seeks compel lodging, endorsement of the competing form, and OSC relief for continued default.	Oppose only with a concrete lodging plan and a form that does not expand the minutes.
Declaration re ROA Non-Compliance (+ Ex. A)	Evidences the register gap as of the filing date.	If you dispute the ROA status, produce the DocID / lodging proof; conjecture will not do.
Reporter Request	Requests a reporter for the hearing and related proceedings.	No stipulation needed;
Notice of Cross-Case Position Lock	Locks, for consistency, the May 27 estoppel packet and June 22 Wong RFJN already on the register, together with the litigation-conduct / privilege / investigation pins from your anti-SLAPP papers.	Any reply that omits those committed positions will be treated as an incomplete response on the record.
Supplemental Notice and Points	Forces confrontation of Wong RT 11, "fully litigated," <i>Baral</i> , <i>Lucido</i> , Evid. Code § 451, CCP § 614, and Civil Code § 47(b) / <i>Rubenstein</i> .	Address each point; silence is an election.
Bench Brief / Hearing Memorandum (incl. Preservation Elections)	Organizes the contested holdings and preservation map for the Court.	Meet the contested holdings;
[Proposed] Order (CCP § 1008) and Exhibit D (May 12 Minute Qualifications)	Seek qualification / reconsideration of the prong-two "fully litigated" / intrinsic-fraud framing in light of the Wong instruction record.	If you oppose qualification, explain how "fully litigated and necessarily decided" survives Wong RT 11 transcripts and <i>Lucido</i> .

Filing	What it does	Your duty
Exhibit Index / Combined Exhibits / Demonstratives	Supply the minute, ROA, contest, and related-case contrast materials.	Object only with specific evidentiary grounds.

CRC 3.1312(a) still governs approval or objection to any proposed order you serve. A request that I “stipulate” does not shorten that rule, cure the fifty-nine-day default, or waive objections to caption defects, clerical errors, or any attempt to use the order form to scrub positions you advanced to obtain the anti-SLAPP grant.

III. No omission of the positions you forwarded to win the strike

You asked the Court to strike an independent equitable action framed around extrinsic fraud and fraud on the Court. To do that, you forwarded (and the May 12 minutes adopted) a package that includes, among other things:

1. Prong-one litigation-conduct framing under CCP § 425.16(e)(2);
2. Rejection of the commercial exemption because the suit was cast as litigation conduct, not commercial activity, from the outset. That was the price of your anti-SLAPP. You needed a litigation-conduct frame to get the strike, so you took it. What you appear not to have considered (or preferred not to write down) is that the same frame carries statutory and regulatory consequences you cannot later pretend were accidental.

I am not going to catalog those codes, laws, and regulations for you; you will have to do your homework on this one, Chad and Tyler. If you meant to understand what you were doing when you told the Court you entered immediately into a litigation posture, you would already have done it. As it stands, the tactic looks less like strategy than like a short-term win purchased with long-term admissions. Either you did not see that, you did not care about what you committed CSAA too, or you hoped no one would notice. Stupid, ignorant, or unethical: choose your label. The arithmetic is the same.

1. A prong-two characterization of the claim as intrinsic rather than extrinsic fraud, resting on the assertion that the issues “were fully litigated in the trial court,” citing your MIL / scheduling RFJN; and
2. Civil Code § 47(b) litigation-privilege analysis, including the Court’s own *Rubenstein* acknowledgment that the privilege does not eliminate the equitable remedy of vacating a fraudulently obtained judgment, while barring ancillary monetary relief.

I will push back, in this Court and on any later review, on any stipulation, proposed order, reply, or oral presentation that **omits, softens, or walks away from** those positions after they were used to

obtain the strike. The written order, if entered, must carry the Court's actual holdings, including the *Rubenstein* / § 47(b) path the minutes already recite. It will not be used as a vehicle to delete the extrinsic-fraud / privilege architecture you asked the Court to adopt.

IV. "Fully litigated" and what the Court itself already said

Separately, and so there is no later claim of surprise: any assertion that the underlying issues were "fully litigated" in a sense that closes extrinsic-fraud analysis, or that treats motions in limine as a final adjudication of statutory negligence duty, is technically and literally inaccurate on the record now before Department 301.

The May 12 minutes themselves preserve that *Rubenstein* vacatur space even while striking monetary relief. The Wong RT 11 record (already noticed: Tx 79843794 / 79830359 / 79843899) shows that after the jury asked for Vehicle Code §§ 22107 and 21804(a), those statutes were withheld. That record is inconsistent with any slogan that statutory negligence duty was fully litigated and necessarily decided. Exhibit D and the CCP § 1008 proposed order ask the Court to qualify the minutes accordingly.

Anything said, or left unsaid, in connection with your July 10 draft that fails to carry forward the litigation-privilege / *Rubenstein* positions you forwarded, or that continues to treat "fully litigated" as if Wong never happened, will be met as incomplete and inaccurate. The Court will be required to address that conflict on **July 31, 2026**.

V. Bottom line on stipulation

I will not stipulate to a sanitized or incomplete form of order. I will not stipulate away CRC 3.1312 non-compliance. I will not stipulate to any reading of "fully litigated" that contradicts the Court's own *Rubenstein* language or the Wong instruction record. If you wish to lodge a corrected proposed order that (a) cures caption and clerical defects, (b) repeats the May 12 substantive holdings without omission of the privilege / extrinsic-fraud path you invoked, and (c) does not foreclose Exhibit D / CCP § 1008 qualifications, serve it under CRC 3.1312 and I will respond within the rule.

Until then, this weeks cohort and my competing lodging stand.

Regards,

Frank Dylan Rosario
Plaintiff in Propria Persona
CGC-25-631801

On Tue, Jul 14, 2026 at 5:16 PM Tyler O'Connell <toconnell@porterscott.com> wrote:

Mr. Rosario,

Please see attached for a Proposed Order Granting Defendants' Anti-SLAPP Motion, which repeats verbatim the contents of the Court's May 12, 2026 ruling. I have made no changes, and it reflects the Court's order, precisely.

We will file this with the Court, for the Judge's signature, as the Court has instructed.

Best,



Tyler J. O'Connell

Attorney

2180 Harvard St. | Suite 500 | Sacramento, CA 95815
T| 916.929.1481 x 540 F| 916.927.3706

www.porterscott.com

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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My
5 business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 20,
6 2026, I served the following document: **DECLARATION OF TYLER J.**
7 **O'CONNELL RE: [PROPOSED] ORDER GRANTING SPECIAL MOTION TO**
8 **STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P.**
9 **§ 425.16 (ANTI-SLAPP MOTION)**

10	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
11	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
12	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
13	X BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

14 Addressed as follows:

15 **PLAINTIFF, IN PRO PER**

16 Franciscus Dylan Rosario
17 7624 Melody Drive
18 Rohnert Park, CA 94928
19 soltrinox@gmail.com

20 I declare under penalty of perjury under the laws of the State of California that the foregoing
21 is true and correct. Executed on Sacramento, California on July 20, 2026

22 *Serena Blithe*
23 Serena Blithe